

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED**

627 W. 21<sup>st</sup> Street, Merced  
1159 G Street, Los Banos

Friday, March 17, 2023

**NOTE: Merced Superior Court will no longer be consolidating Courtroom 8 and Courtroom 10.**

**Tentative Rulings are provided for the following Courtrooms and assigned Judicial Officers with scheduled civil matters:**

**Courtroom 1 – Hon. Carol K. Ash**

**Courtroom 8 – Hon. Brian L. McCabe**

**Courtroom 9 – Judge Pro Tem Peter MacLaren**

**Courtroom 12 – Hon. Jennifer O. Trimble**

**Courtroom 10 will continue to post separate Probate Notes that are not included in these tentative rulings.**

**IMPORTANT: Court Reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and will only be activated upon request.**

**The specific tentative rulings for specific calendars follow:**

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Civil Law and Motion  
Hon. Brian L. McCabe  
Courtroom 8  
627 W. 21<sup>st</sup> Street, Merced

Friday, March 17, 2023  
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. **Parties who contest the tentative ruling or wish to appear at a hearing must contact the clerk of the court at (209) 725-4111 to provide their contact information for the remote hearing.**

**IMPORTANT: Court Reporters will NOT be provided; parties wanting a hearing transcript must make their own arrangements.**

| Case No. | Title / Description |
|----------|---------------------|
|----------|---------------------|

|            |                                                   |
|------------|---------------------------------------------------|
| 19CV-03393 | Dale Lacroix, et al. v. Foster Farms, LLC, et al. |
|------------|---------------------------------------------------|

Order to Show Cause Re: Dismissal – Status of Settlement/Compliance

**Appearance required. Remote appearances are encouraged. Parties who wish to appear remotely should contact the clerk of the court at (209) 725-4111 to provide their contact information for the remote hearing. Please be prepared to set dates for a mandatory settlement conference, and potential trial dates. The Court notes Plaintiffs' Counsel filed a declaration regarding the status on March 2, 2023, proposing alternative options for the 40% of unclaimed funds. Appear to discuss the alternative options.**

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|------------|---------------------------------|
| 21CV-01365 | Arnoldo Padilla v. Ivan Saucedo |
|------------|---------------------------------|

Motion to Quash Defendant's Subpoenas for Plaintiff's Academic Records from Gustine Unified School District

**Defendant's Motion to Quash Defendant's Subpoenas for Plaintiff's Academic Records from Gustine Unified School District is GRANTED IN PART AND DENIED IN PART. The Motion to Quash is DENIED and Gustine Unified School District is ordered to produce documents depicting the information responsive to Form Interrogatory 2.7, i.e. (1) the**